



WESTERN KENTUCKY UNIVERSITY

BOWLING GREEN, KENTUCKY 42101

Office of Associated Student Government

Resolution 80-17
Dorm Inspection Rules
Introduced: 11/17/80

Status: **PASSED**

Whereas, some residents of Western Kentucky University dorms feel that their constitutional rights are violated when their rooms are entered by WKU personnel, and

Whereas, Associated Student Government denied the unconstitutionality of entry to rooms by dorm officials for the purpose of inspection for health and safety hazards which might potentially endanger the well-being of other dorm residents, and

Whereas, guidelines governing dorm inspection exist but, according to some students, are not followed, and

Whereas, violators of said guidelines, (i.e. dorm officials who ignore rules governing inspection process) seem to be immune to punishment, and

Whereas, the Constitution of the United States declares that "persons, houses, papers, and effects" to be "searched" must be "particularly" described, and

Whereas, some WKU students equate a dorm inspection with a "search"—even if merely a "search" for health and safety hazards,

Therefore, be it resolved that ASG recommends the following:

- 1) Only a specific dorm's hall director, assistant hall director and resident assistants be allowed to enter dorm rooms in the specific hall where he/she works when the room's resident is not present for the sole purposes of:
 - a) performing posted room inspection
 - b) dealing with emergency situations
 - c) accompanying a maintenance worker plus emergency personnel
- 2) Maintenance workers may enter dorm rooms if the resident is not present for the sole purposes of:
 - a) making repairs
 - b) spraying for insects
 - c) performing other maintenance-related tasks;

Maintenance workers entering dorm rooms must be accompanied by an R.A.



WESTERN KENTUCKY UNIVERSITY

BOWLING GREEN, KENTUCKY 42101

Office of Associated Student Government

Resolution 80-17 Dorm Inspection Rules

Page 2

- 3) The following rules governing dorm room entry by WKU staff be strictly abided by:
 - a) staff member must, in the case of dorm inspection, post inspection time and date at least one week in advance
 - b) staff member must knock before entering
 - c) staff member must wait at least 30 seconds for an answer after knock before entering;
- 4) Materials found during room inspection which are not in compliance with WKU policy governing residence hall living may be removed by staff only if imminent danger to the health and safety of other dorm residents exist; if said material is removed from dorm room, it cannot be used as evidence in any disciplinary proceeding.
- 5) Any staff member proven to have violated these rules be subject to disciplinary action.

ASG recommends that these rules governing dorm inspection be enforced and obeyed so that both the rights and the safety of WKU dorm residents may be ensured.

Author: Marcel Bush

Sponsor: Legislative Research
Committee